

CV-25-012731 ORTEGA, OFELIA vs VASQUEZ, RUBEN - Plaintiff's Motion to Compel Responses to Demand for Production and Request for order Awarding Monetary Sanctions Against Defendant Ruben Vasquez in the Sum of \$1560.00 - GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On July 2, 2026, Plaintiff filed a motion for order that matters in request for admission of truth of facts be deemed admitted. There is no opposition on file. "If a party to whom requests for admission are directed fails to serve a timely response . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted[.]" (Code Civ. Proc., § 2033.280.) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280(c).) On April 24, 2026, Plaintiff served 11 requests for admission on Defendant, to which Defendant did not respond. On July 28, 2026, Defendant filed a motion for protective order to prohibit Plaintiff from propounding further discovery and to relieve Defendant from responding to Plaintiff's discovery requests, but there is no opposition on file nor is there any filing indicating that Defendant served a substantially compliant proposed response to the requests. The unopposed motion is GRANTED. Sanctions are mandatory. (Code Civ. Proc., § 2033.280.) Therefore, the Court GRANTS the request for order for monetary sanctions in the amount of \$660.00 against Defendant in conjunction with the instant motion. Plaintiff is to pay the sanctions to the LAW OFFICES OF BART BARRINGER. Plaintiff to submit proposed order within 5 court days that conforms to this ruling. CV-26-003505 -TOVAR, MARK A vs FCA US LLC

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CV-26-003505 -TOVAR, MARK A vs FCA US LLC - Defendant's Motion to Compel Plaintiff's Compliance with Code of Civil Procedure Section 871.26(B) – GRANTED.

Parties to note: If any party would like to request a hearing on these matters, please note that the Court will hold oral arguments regarding these motions on August 11, 2026, at 8:30 am in Department 22.

Defendant filed the instant motion seeking to compel Plaintiff to provide code-compliant initial disclosures as required by Code of Civil Procedure section 871.26, subdivisions (b), (f), and (g). Plaintiff served initial disclosures but Defendant argues that Plaintiff's initial disclosures are deficient.

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26(b).) Subdivision (f) requires the plaintiff to provide documents for enumerated categories and subdivision (g) requires the plaintiff to provide information.

Here, Plaintiff's responses are deficient. For example, Plaintiff is required to provide the sales or lease agreement, a copy of current registration, and certain financial information, but Plaintiff has not done so. As another example, Plaintiff is required to provide information concerning accidents and aftermarket modifications, but Plaintiff has not provided the information and instead Plaintiff's response states that Plaintiff is searching for documents and/or information.

The motion is GRANTED. The Court intends to sign the proposed order Defendant submitted in connection with its motion.